



**PLANNING &
DEVELOPMENT**

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MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Charles Bloom, AICP, Planning and Development Director
Subject: PLTA-26-2 – An Ordinance Amending 1.3.11 Nonconformities; 1.4.4 Definitions; 1.4.5 Interpretation of Zoning Map; 2.2.7 Special Use Approval; 5.1.2 Zoning Districts Established; and 5.1.4 Use Table; and creating 5.6.10 Regional Entertainment (RE) Overlay District and 5.7.13 Gaming Center Development Standards and Setting an Effective Date for Compliance Substitute
Date: June 22, 2026

Background:

Based on public comments and discussion at prior meetings of the Governing Body and the Public Service Committee, a substitute ordinance has been prepared. The substitute proposes the following changes to the original proposal:

- Exhibit D has been modified to add "Gaming Center" as a Special Use in the MUB district (to correct an accidental omission). All other exhibits remain the same.
- New language has been added as a new subsection 10 on page 6, and subsection a.1 on page 10 has been deleted.
- The substitute changes the 500-foot separation from a mandatory requirement to discretionary review criteria. This allows for exceptions to be made based on relationships, intervening structures or physical separation, operational characteristics, chronological priority (who was established first), and reasonable expectations of mixed uses. To accomplish this, the separation requirement in Section 9 of the proposed ordinance (prior subsection 5.7.13.a.1) was deleted.
- The substitute also reverts the child care center consideration to apply only to standalone child care centers, in accordance with the staff recommendation made to the Planning Commission.

Attachments:

1. Substitute Ordinance
2. Redlined Ordinance

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING 1.3.11 NONCONFORMITIES; 1.4.4 DEFINITIONS; 1.4.5 INTERPRETATION OF ZONING MAP; 2.2.7 SPECIAL USE APPROVAL; 5.1.2 ZONING DISTRICTS ESTABLISHED; AND 5.1.4 USE TABLE; AND CREATING 5.6.10 REGIONAL ENTERTAINMENT (RE) OVERLAY DISTRICT) AND 5.7.13 GAMING CENTER DEVELOPMENT STANDARDS AND SETTING AN EFFECTIVE DATE FOR COMPLIANCE."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the Governing Body of the City of Cheyenne finds that the text amendment that is the subject of this ordinance meets the criteria specified in Section 2.4.1.d of the Unified Development Code of the City of Cheyenne (UDC).

Section 2. That on May 18, 2026, the Planning Commission conducted a public hearing, reviewed the proposed text amendment, and recommended approval of said text amendment.

Section 3. That Section 1.3.11 of the UDC is amended to add the following definitions and read as shown in Exhibit A, which is attached hereto and incorporated herein.

1.3.11 Nonconformances

c. Nonconforming Uses. Use of land or buildings that legally existed prior to the adoption or amendment of this code, but which could not be commenced under the terms of this code or subsequent amendment are considered legal nonconforming uses. A legal nonconforming use may continue to exist subject to the following:

1. Expansion of a legal nonconforming use requires Board approval in accordance with the procedures and criteria in Article 2 for conditional uses.

2. The use may be changed to a lesser nonconforming use, either in extent or intensity, if the Director determines that the impacts of the new use are less than those of the existing nonconforming use. Accommodating the new use shall not increase any other non-conformances that may exist.

3. If the legal nonconforming use ceases its operation for a continuous period of one year, it shall not be reopened and the building or structure where such use previously existed shall be used only for a conforming use.

4. Where a previously lawful use becomes classified as a Special Use through amendment of this Code, the use may continue for a period established by the adopting ordinance, after which Special Use approval shall be required to continue operation.

Section 4. That Section 1.4.4 of the UDC is amended to add the following definitions and read as shown in Exhibit B, which is attached hereto and incorporated herein.

1.4.4.c Definitions

Entertainment, Amusement, Recreation Services—Other. A Service use primarily engaged in the operation of indoor or outdoor entertainment, amusement and recreation services not elsewhere classified, such as ~~off-track betting~~, indoor or outdoor shooting range, amusement parks, or similar sports or recreation venues.

Gaming Center. A Gaming Center is an establishment primarily dedicated to wagering on live or historic horse races through pari-mutuel or electronic systems, or other lawful wagering activities conducted in accordance with state or federal law. The use includes dedicated wagering areas, electronic terminals, and administrative space, often featuring ancillary amenities such as lounges, food and beverage service, and the on-premises sale of alcoholic beverages. This definition specifically excludes family-style game centers, arcades, or venues where the primary use consists of amusement-only or skill-based machines. Furthermore, it does not include incidental or temporary fundraising activities such as nonprofit bingo, charitable raffles, or similar occasional social gaming events that do not constitute regulated professional gambling.

Section 5. That Section 1.4.5 of the UDC is amended to read:

1.4.5 Interpretation of Zoning Map

Where uncertainty exists with respect to any of the boundaries of a zoning district as shown on the zoning map, the following rules shall apply:

- a. Where district boundaries are indicated as approximately following the centerlines of streets or highways or railroad right-of-way lines or the lines extended, they shall be construed to be the boundaries.
- b. Where district boundaries are indicated as approximately following the corporate limit line of the City, the corporate limit line shall be construed to be the boundaries.
- c. Where district boundaries are indicated as approximately following property lines or the lines extended, the property lines or the lines extended shall be construed to be the boundaries.
- d. Where district boundaries are indicated as approximately following the centerline of stream beds or riverbeds, the centerlines shall be construed to be the boundaries.
- e. Where district boundaries are indicated on unplatted properties, the line shall be interpreted as the ten (10) acre tract line created by the federal government under the Public Lands Survey, unless otherwise noted.
- f. Each zoning map page indicates from quarter section to four sections, with most pages showing only one section. When the zoning district designation is not shown on the section line or the edge boundary on any individual map, it shall be construed to be the edge boundary.
- g. Where a boundary is defined by a specific distance or radius from a feature or line, and uncertainty arises as to whether a property or structure falls within that boundary, the

burden of proof shall rest with the landowner. The landowner shall provide a survey, certified by a surveyor licensed in the State of Wyoming, to definitively establish the boundary location relative to the subject property. This survey shall be submitted to the Director for review, shall serve as the controlling document for determination, and shall be prepared at the sole expense of the landowner.

Section 5. That Section 1.4.5 of the UDC is amended to read:

2.2.7 Special Use Approval

- a. **Intent.** A special use approval process is intended to provide flexibility for different uses within a zoning district, and specifically allow the potential for additional uses that due to their varying design and operational characteristics may not be generally appropriate in a zoning district, but require case-specific review to determine the compatibility of the use, the associated site design, and the operational characteristics with surrounding uses and development patterns.
- b. **Applicability.** ~~An application for a special use may be initiated by the property owner or authorized agent for any use requiring a “special use” approval in these regulations.~~ An application for a special use may be initiated by the property owner or authorized agent for any use permissible as a “special use” within an existing or pending zoning district under this Code.
- c. **Specific Procedures.** Special use approval has the following specific procedures:
 1. **Pre-application Conference.** A pre-application conference is not required, ~~but may be used to discuss planning and engineering issues, and specific application procedures and requirements for a formal application and coordination of the Special Use Permit request with the Site Plan Review Process.~~
 2. **Staff Review.** Upon receipt of a formal application staff will conduct an internal review and may forward copies of the application to any pertinent external agencies for review and comment.
 - (a) **Complete Application.** Within seven (7) days of submittal of the application, staff shall determine whether the application is complete according to official application requirements. Staff shall notify the applicant in writing of any deficiencies in incomplete applications giving directions and deadlines to cure deficiencies. ~~Staff shall schedule complete applications for formal internal review subject to the criteria in this section and any additional criteria required by the use.~~ Staff shall schedule complete applications for consideration of the City Council between 15 and 60 days of the determination of a complete application.
 - (b) **Notice.** Prior to Review by the City Council the following ~~Notice~~ notice shall occur:
 - (1) **Posted Notice.** Prior to a recommendation, staff shall provide one sign for each road ~~frontage~~ frontage indicating that there is a pending development application. The applicant shall ensure that this sign is posted on each road frontage on the property for at least seven (7)

days prior to ~~the recommendation~~ City Council introduction. When the applicant has made all reasonable and good faith efforts to maintain posted notice, failure of this posted notice will not be grounds to invalidate the application

(2) *Published Notice*. Notice shall be published in a newspaper of general circulation and posted to the City of Cheyenne website at least 15 days prior to City Council introduction indicating the general location of the property, the nature of the application, the location for further information on that application, and the date, time and location of City Council and City Council Committee consideration. Notice of resolution introduction and referral is not required.

~~(1)~~ (3) *Mailed Notice*. All owners within 300' of subject property shall be mailed notice indicating the general location of the property, the nature of the application, the location for further information on that application, and the dates of City Council and City Council Committee consideration. Notice of resolution introduction and referral is not required. When mailed notice is properly addressed based on the latest property information and deposited in the mail at least 15 days prior to City Council introduction, failure of a party to receive such notice will not be grounds to invalidate any action taken.

(c) *Staff Recommendation*. Upon review according to the criteria in this section, and between 7 and 30 days of the determination of a complete application, the Director shall take one of the following actions and afterward place the application on the next available City Council agenda:

- (1) Recommend approval of the application ~~and place on the next available City Council agenda; or~~
- (2) Recommend approval of the application with specific conditions or modifications ~~and place on the next available City Council Agenda; or~~
- (3) Recommend Denial of the application and state specific reasons for denial.

3. *City Council Consideration*. The City Council shall consider the application in the form of a resolution. The City Council may approve, deny, or approve the application with reasonable conditions as deemed necessary to protect the public health, safety, and welfare and to ensure compliance with applicable City standards and requirements. ~~Approval and Acceptance. Upon recommendation of the Staff, the application shall be scheduled for approval by the City Council at the next regular meeting. At this meeting City Council shall review the application subject to the criteria of this section and criteria for the special use and:~~

~~(a) Approve the Special Use Permit;~~

~~(b) Approve the Special Use Permit with specific conditions or modifications. Conditions or modifications shall be:~~

~~(1) to better meet standards and review criteria; or~~

~~(2) to address situations created by or aggravated by the proposed application, and which conditions are roughly proportional to the impacts of the proposed development;~~

~~(c) Deny the Special Use Permit.~~

4. *Effect of Decision.* The decision of the ~~Governing Body is the final decision. Any application that has not established the Special Use within 1 year shall be void~~City Council shall be final. Approval by the City Council shall be valid for a period not to exceed 3 years and shall terminate concurrently with the expiration of any applicable license. Denial of the application shall bar any application for a special use that is not substantially different for at least 1 year.
- d. *Review Criteria.* In reviewing and making a decision on ~~the~~ Special Use Permit, ~~the Governing Body and Staff~~ and the City Council shall consider:
1. Whether the use meets applicable provisions of the UDC, including applicable development and design standards. In meeting these criteria, the reviewing body may consider design standards contained in the UDC that are not otherwise applicable in the zoning district, where the Design Objectives associated with such standards are relevant to the specific situation under review.
 - ~~1.2.~~ Whether the operating characteristics of the use are complimentary to the character of the surrounding area in terms of hours of operation, visible and audible impacts, and traffic patterns caused by the use;
 - ~~2.3.~~ Whether the ~~The suitability of the subject property for the~~ use, compared with the suitability of the subject property for other uses permitted by right in the zoning district;
 - ~~3.4.~~ Whether the specific application of the use to the site supports the general intent and applicability of the zoning district, and does not compromise the general intent and applicability of adjacent zoning districts;
 - ~~4.5.~~ The duration of the proposed Special Use relevant to the applicability requirements of ~~this section~~ the zoning district and adjacent zoning districts;
 - ~~5.6.~~ Whether any additional site-specific conditions associated with the application are warranted and sufficient to prevent any potential harm to the public health, safety or general welfare;
 - ~~6. The Review and recommendations of other reviewing bodies;~~
 7. Whether the use is in conflict with other applicable regulations, including City, State or Federal regulations;
 8. The adequacy of infrastructure supporting the site.
 9. Whether the proposed use contributes demonstrable public benefits, including but not limited to affordable housing, additional recreational opportunities, preservation or provision of open space, cultural amenities, or other improvements that serve the general welfare of the community.

9.10. Whether the proposed use maintains an appropriate separation from sensitive uses in the vicinity, including but not limited to schools, child care centers operating as the sole primary use of an independent structure, places of worship, and public parks or recreation facilities. The reviewing body may weigh the degree of physical or functional separation between uses, the presence of intervening development or infrastructure, the operational characteristics of both the proposed use and any nearby sensitive use, the length of operation of both the proposed use and any nearby sensitive use, and whether the zoning context reasonably anticipates the co-location of proposed special uses in proximity to such facilities.

Section 6. That Section 5.1.2 of the UDC is amended as shown in Exhibit C, which is attached hereto and incorporated herein.

5.1.2 Zoning Districts Established

The following zoning districts are established:

Section 7. That Section 5.1.4 of the UDC is amended as shown in Exhibit D, which is attached hereto and incorporated herein.

Section 8. That Section 5.6.10 of the UDC is created to read:

5.6.10 Regional Entertainment (RE) Overlay District

- a. **Intent.** The Regional Entertainment (RE) Overlay District is intended to encourage urban and infill development and support redevelopment opportunities in evolving and transitioning corridors within the City. The district promotes development that leverages proximity to regional destinations, major transportation corridors, and interchange areas to attract visitors, support economic activity, and increase vitality across a range of urban contexts.
- b. **Applicability.** The RE Overlay District applies to the following areas:
 1. West 15th. All lots, parcels, and tracts of land located completely or partially within the area bounded by the alley between 15th Street and Lincolnway on the north, Capitol Avenue on the east, the Union Pacific Railroad on the south, and Bent Avenue on the west.
 2. Reed Rail Corridor. All lots, parcels, and tracts of land adjacent to the Burlington Northern or Union Pacific Rail Line within the area bounded by 23rd Street on the north, Bent Avenue on the east, the Union Pacific Railroad on the south, and Snyder Avenue and an extension of Snyder Avenue south to its intersection with the Union Pacific Railroad on the west.
 3. West Lincolnway. All lots, parcels, and tracts of land lying within two hundred (200) feet of each side of the West Lincolnway right-of-way, from Crow Creek westward to the corporate limits of the City. The standards, requirements, and regulations of the RE Overlay District shall apply to the entirety of any lot, parcel, or tract meeting the foregoing locational criteria; provided, however, that in no

instance shall the permitted use extend beyond three hundred and fifty (350) feet of the West Lincolnway right-of-way, as measured perpendicularly from said right-of-way line.

4. **High Plains Road Interchange.** All lots, parcels, and tracts of land within the corporate limits of the City and adjacent to the Interstate 25 right-of-way and lying within 3,000 feet of the centerline of High Plains Road, as measured along the Interstate 25 right-of-way from said centerline. For purposes of determining adjacency, an intervening railroad right-of-way or State-owned land shall not be construed to break or interrupt adjacency to the Interstate 25 right-of-way. The standards, requirements, and regulations of the RE Overlay District shall apply to the entirety of any lot, parcel, or tract meeting the foregoing locational criteria; provided, however, that in no instance shall the permitted use extend beyond 2,500 feet of the Interstate 25 right-of-way, as measured perpendicularly from said right-of-way. Any subsequent relocation, reconstruction, or realignment of High Plains Road or Interstate 25 shall not alter the boundaries of the overlay district.
- c. **Context.** This district is most appropriate in areas with existing or future urban development patterns.
- d. **Permissible Uses.** All uses allowed in the underlying zoning district are allowed as indicated in Table 5-1. Notwithstanding Table 5-1, Gaming Centers shall be a Permitted Use within the RE Overlay District.
- e. **Site and Building Design Standards.** All uses shall be subject to the development standards of the underlying zone district.

Section 9. That Section 5.7.13 of the UDC be created to read:

5.7.13 Gaming Centers

In districts where a Gaming Center is allowed, a Gaming Center shall meet the following standards in addition to all other lot and building standards for the underlying district.

- a. In Community Business – CB, Mixed-Use Business – MUB, and Central Business District – CBD:
 1. Be adjacent to a Collector, Minor Arterial, or Principal Arterial street. Access to a Collector, Minor Arterial, or Principal Arterial street is not required.
- b. In the RE Overlay District:
 1. For properties developed within the Reed Rail Corridor, the primary pedestrian entrance to the Gaming Center shall be oriented toward the Reed Rail Corridor. Exceptions may be approved through the Administrative Adjustment process if the Director finds that a pedestrian entrance oriented toward the Reed Rail Corridor cannot be reasonably accommodated due to conditions specific to the property.

Section 10. That any legally established use that becomes classified as a Special Use as a result of this ordinance shall be authorized to continue operations through December 31, 2027,

after which the use shall obtain Special Use approval pursuant to UDC Section 2.2.7 or cease operation.

Section 11. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional or otherwise unlawful, such declaration shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 12. This ordinance shall be in full force and effect upon approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KYLIE SODEN, CITY CLERK

Published: _____
Wyoming Tribune-Eagle

1.3.11 Nonconformances

- a. **Generally.** Within the zoning districts established by this Title and amendments that may later be adopted, there exist land and uses of land which were lawful before this Title was passed or amended, but which would be affected by the terms of this Title or future amendments. Therefore, it is the intent of this Title to permit these nonconforming uses and conditions to continue, provided that:
 1. The continuation of the nonconformance is not detrimental to the public health, safety and welfare;
 2. Any future development activity on the site seeks to conform to the code to the extent practical; and
 3. All efforts to alleviate or gradually eliminate the undesirable consequences of nonconformances are made. It is further the intent of this Title that these nonconforming uses and conditions shall not be used as grounds for allowing other uses or conditions prohibited elsewhere in the district.
- b. **Nonconforming Structures.** Structures that were legally constructed prior to the adoption or amendment of this code, but which could not be constructed under the terms of this code or subsequent amendment are considered nonconforming structures. A nonconforming structure may continue to exist or expand subject to the following:
 1. An extension of a structure, or placement of an accessory building, which does not further encroach upon the violated yard requirement, may be granted upon the approval of the Director, if it is found the extension or placement of structure is not detrimental to the purposes or intent of this Title.
 2. If destroyed by fire or other natural disaster, the structure may be restored to its original condition if the restoration is started within one year. A two-year extension may be granted by the Director for a building or structure provided a written request for such extension is received from the building owner prior to the end of the original one-year period.
 3. If the structure is determined obsolete or substandard by virtue of any applicable code beyond this Title, and the cost of improvement or restoration exceeds fifty percent of the fair market value of the structure,

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then the right to maintain the nonconformance shall terminate.

- c. **Nonconforming Uses.** Use of land or buildings that legally existed prior to the adoption or amendment of this code, but which could not be commenced under the terms of this code or subsequent amendment are considered legal legal nonconforming uses. A legal nonconforming use may continue to exist subject to the following:

1. Expansion of a legal nonconforming use requires Board approval in accordance with the procedures and criteria in Article 2 for conditional uses.
2. The use may be changed to a lesser nonconforming use, either in extent or intensity, if the Director determines that the impacts of the new use are less than those of the existing nonconforming use. Accommodating the new use shall not increase any other non-conformances that may exist.
3. If the legal nonconforming use ceases its operation for a continuous period of one year, it shall not be reopened and the building or structure where such use previously existed shall be used only for a conforming use.

4. Where a previously lawful use becomes classified as a Special Use through amendment of this Code, the use may continue for a period established by the adopting ordinance, after which Special Use approval shall be required to continue operation.

- d. **Nonconforming Lots.** Any platted lots that legally existed prior to the adoption or amendment of this code, but which could not be platted under the terms of this code or subsequent amendment are considered nonconforming lots. A nonconforming lot may continue to exist subject to the following:

1. Lots that existed at the time of enactment of the ordinance codified in this Title that do not meet the minimum area or frontage requirements of the zoning district in which they are located may be used as a building site. If Administrative or Board approval is required for a use on the lot, the lot size may be a factor in determining if the use is appropriate.

- e. **Nonconforming Site Conditions.** Any site condition associated with a conforming use or structure (such as parking, driveways, or other non-structural site

characteristic) in existence prior to adoption of these regulations but not in compliance with these regulations or subsequent amendments is considered a nonconforming site condition. Any change in use, expansion of the use, or expansion of the structure associated with the use shall terminate the legal status of the nonconforming site condition, except that in instances where a site plan is required for the proposed development activity, an administrative adjustment may be granted by the Director if:

1. The proposed adjustment does not aggravate any other non-conformance that may exist on the site.
2. The proposed adjustment will not have adverse impacts on adjacent property
3. The proposed adjustment is the minimum deviation necessary from applicable standards and otherwise meets the intent of the current standards. In determining the minimum deviation necessary the Director shall consider:
 - (a) The degree that the applicable standard has changed from prior standards;
 - (b) The initial investment in the non-conforming site condition and the amount of benefit already received from that investment;
 - (c) The proposed action does not unreasonably extend the useful life of the nonconforming site condition; and
 - (d) The practical or financial feasibility of strict conformance in relation to the proposed investment in new development activity.

- f. **Determination of Nonconforming Rights and Status.** If nonconforming rights are challenged, or if there is a request to expand or continue nonconformances, it shall be the property owner's responsibility to provide proof through business records or other records and data that the nonconformance has not ceased operation and has continued in operation without a one-year lapse. It shall also be the property owner's responsibility to provide proof that the nonconforming use legally existed, or was previously grandfathered, at the time the ordinance codified in this Title was adopted.

building designed as a single principal dwelling unit and situated on its own fee simple lot.

Semi-attached Dwelling ("Duplex"). A Residential use in a detached building designed as a "paired house," matching the appearance of a house or townhouse. A duplex may be situated on its own fee simple lot, but each unit of a side-by-side paired house shall meet all requirements to be platted on individual lots. Two units in the same building in the form of "flat-over-flat" duplex shall be considered an Accessory Dwelling, not a Semi-attached Dwelling.

Cottage Lot. A Residential use utilizing detached dwellings, semi-attached dwellings, or attached dwellings designed to face a common area (typically open space) with other shared facilities (such as shared public street access, shared parking, shared trash collection, etc.). Individual dwelling units may be on fee simple lots, a condominium, or on one larger ownership parcel. A cottage lot is also known as "bungalow court" or "cottage court". Cottage lots are subject to the provisions of UDC Section 6.6.5.

Group Housing. A residential use, Group Housing is the provision of in-home, 24-hour, 7-days a week custodial care for from 1 to 6 individuals living together as a single housekeeping unit in a single-family, detached dwelling unit. This maximum number excludes staff. This use does not include a household where custodial care is provided by a family member to from 1 to 6 persons in a single-family, detached dwelling unit. Custodial care includes the provision of in-home personal assistance, housekeeping service, supervision, and limited medical assistance to a resident or residents. Examples of Group Housing include, but are not limited to, homes for elders and disabled or mobility- impaired persons, homes for rehabilitation from drugs or alcohol addiction, or homes for formerly incarcerated persons. The Group Housing use is subject to the provisions of Section 5.7.5.d and e of the UDC.

Dormitories. A Residential use in a building that provides sleeping accommodations for a number of people.

Multi-dwelling Building ("Apartment"). A Residential use in a building designed for more than two principal

1.4.4 Descriptions of Uses of Land and Buildings

This section contains general descriptions associated with the uses of land and buildings. It is organized according to categories of uses and specific types of uses within each category. These categories and types correspond to the Use Table in Article 5, Zoning Regulations. Where a use appears to meet two or more descriptions or where a use is not described, the Director shall make a determination. If a use meets all of the characteristics of a use category and use type, or is so similar to a described use type as to create no anticipated differential impact, the Director may interpret that the described use includes the additional use. In making this determination, the Director shall compare: (a) the intensity and scale of the use relative to the site; (b) the typical site and building designs associated with the use; (c) the functional or operational characteristics and the potential impacts of the use on adjacent property; and (d) the potential contribution of the use to the overall character of the district or districts in which the comparable use is allowed. All other uses which cannot be interpreted in this manner are different from the described uses, are not anticipated by these regulations, and may only be allowed by a zoning text amendment.

- a. **Residential Uses.** The Residential use category is for all types of dwelling units used for permanent residence, including a variety of lot types, building types, and unit types, that may vary in the kind and classes of buildings based on the character of the neighborhood.

Attached Dwelling ("Townhouse" / "Rowhouse"). A Residential use in a building designed with a series of attached principal dwelling units separated by a single common wall. Each unit is typically situated on its own fee simple lot where party walls are used, but buildings or grounds may be owned in common. Each unit has the same orientation and front façade, and has its own private entrance to the exterior of the structure.

Detached Dwelling. A Residential use in a detached

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dwelling units and situated on a single fee simple lot. This building type includes a variety of variations based on the permitted building scale, including “stacked flats” (3-story/tri-plex), “six-plex” (paired stacked flats), or larger apartment buildings.

Live/Work. A primarily residential use in a building designed for two principal uses, where a portion is designed for residential dwelling use, and a portion is designed for a limited non-residential use to support the occupation or vocation of the resident of the dwelling unit. The non-residential portion is limited to the 1st story and less than 50% of the total floor area of the building. The building is situated on its own fee simple lot but may be attached or detached based on zoning district standards and context.

Mixed-use Dwelling. A Residential use in a building designed for a mix of uses with office or retail on the 1st story / street-front and residential uses on the upper stories where the dwelling units are not accessory to the non-residential uses. Mixed-use buildings may be either small- or large-scale, with larger scale buildings, depending on the context and zoning district standards, and typically being broken into multiple fee simple lots with party walls, but the dwelling units may be owned in fee simple, as condominiums, or apartments.

Accessory Dwelling. A separate dwelling unit that is associated with, incidental to, and subordinate to another dwelling unit as the principal use, and located on the same lot as the principal dwelling (commonly referred to as “Basement Apartment” or “Garage Apartment”). The Accessory Dwelling may take forms such as a stand-alone unit in an accessory building, a small unit added onto the principal building, or a “flat-over-flat” duplex.

Urban Loft Building. A residential use in a building designed for more than two principal dwelling units and situated on a single fee simple lot. This building type contemplates a taller multifamily building, often with parking structured or at grade with the building above, located in a walkable, mixed use context.

Manufactured Home Park. See “Manufactured Housing Park”.

Manufactured housing parks. An area of land under one fee ownership, where designated spaces for

manufactured homes are rented for use as a principal dwelling unit, and which may provide associated facilities for common use.

Campground. A Service Use accommodating overnight stays in tents, cabins, or other non-motorized shelters.

Combined Manufactured Housing Park. A Residential Use consisting of a manufactured housing park that, in addition to accommodating manufactured homes, is duly licensed to permit recreational vehicles to occupy independent spaces on the same site. Such facilities are deemed nonconforming uses and shall not be established in the City.

Recreational Vehicle Park. A Service Use providing accommodations for recreational vehicles, travel trailers, motor homes, dependent travel units, and park model recreational vehicles.

- b. **Civic Uses.** The Civic use category includes uses serving a broad and general public and community interest to enhance daily cultural, social or recreation opportunities for area landowners and residents. This category is based on the need of different kinds and classes of buildings in close proximity with other uses, which can be integrated in to these areas with the appropriate level of civic design. The Civic use category may contain uses that are either public and accessible to all citizens; common and accessible by rights associated with ownership; or private and accessible by membership or general association.

Neighborhood Assembly (<350 maximum occupancy). A Civic use that conducts organized services, assemblies, or programs on a periodic or occasional basis, primarily for the convenience, entertainment, education, and social or spiritual welfare of nearby residents. Neighborhood Assemblies typically have buildings and supporting facilities designed for a capacity of no more than 350 people for any one event. Common examples include meeting halls, neighborhood association club houses, or smaller neighborhood churches.

Community Assembly (350 -1000 maximum occupancy). A Civic use that conducts organized services, assemblies, or programs on a periodic or occasional basis, primarily for the convenience, entertainment, education, and social or spiritual welfare for citizens in the general vicinity. Community Assemblies typically have buildings and supporting facilities designed for

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a capacity of no more than 1000 people for any one event. Common examples include community centers, museum, or large churches. [For larger assemblies see Entertainment, Venue].

Cemeteries. A Civic use where land is used for the burial of the deceased, both human and animals, and dedicated for internment purposes, including columbaria, crematoria, mausoleums and mortuaries when operated in conjunction with and within the boundary of such cemetery.

Primary and Secondary Schools. A Civic use where buildings and facilities are used for the education and instruction of K through 12 students.

Educational Facilities. A Civic use where buildings and facilities are used for the education and instruction of post-secondary students, non-traditional students, or continuing education for adult or general population.

Community Athletic Field. A noncommercial facility for active outdoor recreation and organized sports, including a facility which is an accessory use to a school, but excluding any facility with lighted fields or permanent buildings for refreshment stands, locker rooms or shower facilities.

Developed Athletic Field or Stadium. A facility for active outdoor recreation and organized sports which includes lighted fields, permanent grandstands, or permanent buildings for refreshment stands, locker rooms or shower facilities.

- c. **Service Uses.** The Service use category is for businesses engaged in the exchange of professional skills, advice, personal care or other resources, and the nature of the exchange generally requires frequent interactions with the clients, customers or patrons on the premises, and where lots or buildings may require access or exposure to the public-at-large.

Service Business – Limited. A Service use that primarily supports adjacent residential uses by providing daily services for the convenience of residents, and involving less than 3,000 square feet of gross leasable area. Examples include post office, bank outlet, barber shop or beauty salon, tailor, or other similar services.

Service Business – General. A Service use that provides support for adjacent residential uses or businesses

which may involve more than 3,000 square feet of gross leasable area. Examples include copy centers, large banks, or any other similar services that exceed the scale of Service Business – Limited.

Assisted Living Facility / Nursing Home. A Service use / institutional occupancy providing residential accommodations for 7 or more persons to meet the needs of the aging, semi-dependent or dependent population in a residential environment, together with recreation and support services and facilities for the benefit of the residents and where any permanent on-site staff is accessory to the primarily residential use. On-site skilled nursing care or medical facilities may be provided. An Assisted Living Facility/Nursing Home use is subject to the provisions of Section 5.7.5 of the UDC. An Assisted Living facility/Nursing Home use, pursuant to this definition, does not include a Group Housing use or site. An Assisted Living Facility/Nursing Home operation may take place within a residential or a non-residential structure.

Animal Care, Kennel. A Service use where domestic animals are boarded, bred or sold as a primary business.

Animal Care, Hospital / Clinic. A Service use where animals are admitted for examination, treatment, or health care by a doctor of veterinary medicine, which may include kennels, runs or other accessory accommodations.

Family Child Care Home (FCCH). A Service use where preschool care and education is provided for up to 10 children within the owner's primary residence. The owner's infants, toddler and/or children ages three (3) to five (5) shall count toward the capacity.

Family Child Care Center (FCCC). A Service use where preschool care and education is provided for up to 15 children within the owner's primary residence. The owner's infants, toddler and/or children ages three (3) to five (5) shall count toward the capacity.

Child Care Center (CCC). A Service use where preschool care and education is provided for children on a regular basis not located in any person's residence.

Emergency Shelter. A facility, which provides shelter or overnight accommodations and incidental support services for persons experiencing homelessness and/or families on a short-term basis.

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Entertainment, Indoor Recreation Facility. A Service use where facilities for indoor sports, entertainment, or similar recreation opportunities for participants and spectators are offered. Examples of uses include bowling alleys, pool halls, roller skating rinks, swimming pools, movie theaters, video or similar gaming venues, racquetball courts, or fitness clubs.

Entertainment, Outdoor Recreation Facility. A Service use where facilities for outdoor sports, entertainment, or similar recreation opportunities for participants and spectators are offered. Examples include racetracks, driving ranges, music performance venues, or other outdoor entertainment venues.

Entertainment, Venue. A Service use where music concerts, floor shows or other forms of entertainment, performances or presentations by persons are provided indoors for guests or the general public, which may include accessory dining, bar, and similar refreshment services. Examples include concert halls, theatrical performance art centers, dinner theaters, other food or beverage-serving establishments providing live entertainment venues, banquet halls, or auditoriums.

Entertainment, Amusement, Recreation Services—Other. A Service use primarily engaged in the operation of indoor or outdoor entertainment, amusement and recreation services not elsewhere classified, such as ~~off-track betting~~, indoor or outdoor shooting range, amusement parks, or similar sports or recreation venues.

Gaming Center. A Gaming Center is an establishment primarily dedicated to wagering on live or historic horse races through pari-mutuel or electronic systems, or other lawful wagering activities conducted in accordance with state or federal law. The use includes dedicated wagering areas, electronic terminals, and administrative space, often featuring ancillary amenities such as lounges, food and beverage service, and the on-premises sale of alcoholic beverages. This definition specifically excludes family-style game centers, arcades, or venues where the primary use consists of amusement-only or skill-based machines. Furthermore, it does not include incidental or temporary fundraising activities such as nonprofit bingo, charitable raffles, or similar occasional social gaming events that do not constitute regulated professional gambling.

Lodging, Bed and Breakfast. A Service use where up to six guest rooms are rented, generally for short-term occupancy for sleeping, together with limited facilities for the accommodations of guests in a home-like atmosphere.

Lodging, Hotel or Motel. A Service use where six or more guest rooms are rented, generally for short-term occupancy for sleeping, together with incidental meeting rooms, restaurants and recreation facilities for the primary benefit of the guests.

Medical Care, Clinic. A Service use where physicians, dentists, or other health care professionals are associated for the purpose of carrying on their professions. A health clinic may include a dental or medical laboratory, after hours emergency care, but it may not include in-patient care or operating rooms for major surgery.

Medical Care, Office. A Service use where physicians, dentists, or other health care professionals carrying on their professions. A medical office may include a dental or medical laboratory, but may not include in-patient care or operating rooms for major surgery and may not be open for after-hours emergency care.

Medical Care, Hospital. A Service use providing health services, primarily for inpatients, and medical or surgical care of the sick or injured, including as an integral part of the institution such related facilities as laboratories, outpatient departments, training facilities, central service facilities and staff offices.

Mini Storage. A Service use where a building or group of buildings in a controlled access and fenced compound that contains varying sizes(s) of individual, compartmentalized and controlled-access stalls or lockers for the storage of a customer's goods or wares. Mini Storage may include individual units accessed from inside of a building offered for rent or lease for the storage of personal property. It may also include parking areas for the storage of vehicles, trailers, recreational vehicles, boats, snow mobiles and other similar items as an accessory use. Outdoor storage, or the storage of junk, explosives, or flammable materials and other noxious or dangerous materials are specifically prohibited.

Storage, Yard. A Service use where exterior yards are leased for the outdoor storage of large-item personal

property such as boats or recreational vehicles.

- d. **Employment Uses.** The Employment use category is for businesses engaged in administrative, clerical, and professional operations and support, where products or services are of the nature that generally, when compared to Retail Use Types, do not require daily on-premise interactions with the clients, customers or patrons, and where lots and buildings are not primarily designed to maximize exposure to the public-at-large.

Home Occupation. A business which is carried on entirely within a legal or legal non-conforming dwelling or allowed accessory building, and which is clearly incidental and secondary to the use of the premises as a dwelling.

Office - Limited. An Employment use which is not an accessory to another use, but limited individual units of gross leasable area are less than 3,500 square feet, and where each owner or tenant typically employs less than 20 employees on premises. Examples include small-scale professional service offices such as accountants, architects, insurance, law, real estate, or other similar businesses which can operate within the unit square footage and employee limits of this category.

Office - General. An Employment use where individual units of gross leasable area are between 3,500 and 20,000 square feet, and where each owner or tenant typically employs between 20 and 100 employees on premises. Examples include large professional service offices such as accountants, architects, insurance, law, real estate, or other similar businesses which exceed the Office - Limited category, or other moderate size business or corporate employment operations.

Major Office or Office Complex. An Employment use where individual units of gross leasable area may be more than 20,000 square feet in a single building or group of buildings, and each owner or tenant may typically employ more than 100 employees on premises. Examples include major professional service firms or large corporate offices.

- e. **Commercial Uses.** The Commercial use category is for businesses engaged in the exchange of merchandise for general consumers, and nature of the exchange generally requires frequent interactions with the clients, customers

or patrons on the premises, where lots or buildings are primarily designed for exposure to the public-at-large.

Convenience Retail / Corner Store (<2k). A Commercial use primarily engaged in the small-scale sale of household merchandise and general consumer products and involving less than 2,000 square feet of gross leasable area. Convenience Retail / Corner Store uses are characterized by target market areas of less than 1/4 mile radius for most of its on-premise sales or are associated accessory to an employment or service business.

Neighborhood Retail (<5K). A Commercial use primarily engaged in the small-scale sale of household merchandise and general consumer products and involving less than 5,000 square feet of gross leasable area. Neighborhood retail uses are characterized by a target market area of less than 1/2 mile radius for most of its on premise sales.

General Retail (5K - 25K). A Commercial use primarily engaged in the sale of household merchandise, specialty merchandise, and consumer products and involving between 5,000 and 25,000 square feet of gross leasable area. General Retail uses are characterized by a target market area of less than 1 mile radius for most of its on-premise sales.

Large-scale Retail (25K - 100K). A Commercial use primarily engaged in the sale of household merchandise, specialty merchandise or general consumer products and involving between 25,000 and 100,000 square feet of gross leasable area. Large-scale Retail uses are characterized by a target market area that may be greater than 1 mile radius for the on-premise component of its sales.

Warehouse Retail (> 100K). A Commercial use primarily engaged in the sale of household merchandise, specialty products, general consumer products, or wholesale products and involving greater than 100,000 square feet of gross leasable area. Warehouse Retail uses are characterized by a target market area that may be more than 1 mile radius for most of its sales.

Grocery Store (<45K). A Commercial use engaged in the retail sale of a broad range of food products and limited household products for consumption

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GENERAL PROVISIONS

1.4 INTERPRETATION

off premises, although some limited areas may be dedicated to the on-premise sale and consumption of food. A grocery store involves less than 45,000 square feet of gross leasable area and is characterized by a target market of less than 1-mile radius.

Supermarket (> 45K). A Commercial use engaged in the retail sale of a broad range of food and household products for consumption off premises, although some limited areas may be dedicated to the on-premise sale and consumption of food. A supermarket typically involves more than 45,000 square feet of gross leasable area and is characterized by a target market of greater than 1-mile radius.

Outdoor Sales, Limited. The limited display of merchandise on a sidewalk or an exterior private area of a site associated with an otherwise permitted Commercial use. This display is further limited by the following: (1) it only occurs during regular business hours and is brought indoors; (2) is limited in extent to less than 10% of the entire merchandise area of the Commercial use; and (3) it is limited to seasonal sales or events lasting no longer than one-week at a time with at least 4 weeks between consecutive events.

Outdoor Sales, Seasonal. The limited display of merchandise on a sidewalk or an exterior private area of a site associated with an otherwise permitted Commercial use. This display is further limited by the following: (1) it only occurs during regular business hours and is brought indoors; (2) is limited in extent to less than 20% of the entire merchandise area of the Commercial use; and (3) it is limited to seasonal sales or events lasting no longer than one month at a time with at least 2 months between consecutive events.

Outdoor Sales, Event or Display Area. The display of merchandise on a sidewalk or an exterior private area of a site associated with an otherwise permitted Commercial use that does not meet the limitations of Limited or Seasonal Outdoor Sales, and which may require areas to be designed and dedicated for display when part of the permanent operations of an interior retail business. Examples include lumber yards and garden centers.

Outdoor Sales. The display and sale of merchandise where the primary business is generated by merchandise displayed permanently and year round

on an exterior portion of the site. Examples include automobile sales and implement sales.

Bars. A Commercial use primarily engaged in serving alcoholic beverages for consumption on-premises. Any food or entertainment services are generally secondary or accessory to the business.

Liquor Store. A Commercial use engaged primarily in the retail sale of alcoholic beverages for consumption off-premises. The sale of food or accessory beverage supplies are generally secondary or accessory to the business.

Automobile Service Repair. A Commercial use engaged in the repair, maintenance, condition, detailing, or cleaning of motor vehicles and including the accessory sales of lubricants, parts, or accessories. Services also include any modification, assembly or painting of motor vehicles and repair of internal combustion engines.

Automobile Service Station – Limited. A Commercial use engaged in the retail sale of fuel, and may include accessory sales of lubricants, accessories, repair services, or maintenance services. This use is limited to no more than 2 fuel pump islands and no more than 8 fueling stations.

Automobile Service Station – General. A Commercial use engaged in the retail sale of fuel, and may include accessory sales of lubricants, accessories, repair services, or maintenance services, or accessory Convenience Retail. This use is limited to no more than 4 fuel pump islands and no more than 16 fueling stations.

Automobile Service Station – Large-scale. A Commercial use engaged in the retail sale of fuel, and may include accessory sales of lubricants, accessories, repair services, or maintenance services, or accessory Convenience Retail. This use may have more than 4 fuel pump islands and more than 16 fueling stations.

Food Service – Limited (< 2K). Any Commercial use engaged in the preparation and retail sale of food and beverages for consumption on-site and including less than 2,000 square feet of seating area.

Food Service – General (2K – 4K). Any Commercial use engaged in the preparation and retail sale of food and beverages for consumption on-site and including between 2,000 and 4,000 square feet of seating area.

Food Service – Large-scale (> 4k). Any Commercial use engaged in the preparation and retail sale of food and beverages for consumption on site and including more than 4,000 square feet of seating area.

- f. **Industrial Use Category.** The Industrial use category is for businesses engaged in manufacturing, fabrication, warehousing, processing, wholesale or disposal of goods, products and component parts, and services related to these businesses. These uses typically belong in a special district due to their inability to blend with the uses from other use categories, except when occurring at the smallest scale.

Data Center. A use consisting of buildings or structures specifically designed or modified to house networked computers and data and transaction processing equipment and related infrastructure support equipment, including power and cooling equipment. A data center may be used to provide data and transaction processing services, outsource information technology services and/or computer equipment colocation services. A data center may also include buildings or structures that support the operation of the data center including retrofit buildings, warehousing for logistics, independent network buildings, buildings for support staff, and emergency generators. A Data Center shall not include activities which consistently produce noise discernable at the property line. Should a Data Center produce noise discernable at the property line, it shall be classified as an Industrial use.

Limited Industrial. An Industrial use where small-scale activities produce no byproducts such as smoke, odor, dust or noise discernable from the outside of the building in which it is located. Individual facilities typically occupy less than 10,000 square feet of gross leasable area and distribution and deliveries are commonly made by general consumer delivery services, requiring no significant truck access. A retail, showroom, or service component is often associated with the use. Examples include artist studios, metal and wood shops, arts and crafts manufacturing, small

appliance or machine repairs, or other small-scale assembly of finished parts or products from previously prepared materials.

Moderate Industrial. An Industrial use where byproducts such as smoke, odor, dust or noise are not discernable from outside of the building in which it is located. Distribution and deliveries can occur from general consumer delivery services or limited commercial truck access. Examples include research labs or facilities, small electronics or computer assembly and manufacturing, furniture assembly.

General Industrial. An Industrial use where byproducts such as smoke, odor, dust or noise are not discernable from beyond the property boundary. Operations may require commercial vehicle access for distribution and deliveries. Examples include non-animal food processing, commercial warehouses or wholesale distribution centers or energy industry services.

Industrial. An Industrial use capable of producing significant byproducts discernable from outside the building and property including noise, odors, or other potentially offensive materials. Operations may require substantial commercial vehicle access for distribution and deliveries. Examples include food-processing involving animals (large-scale), metal or chemical manufacturing, and data centers which consistently produce noise discernable at the property line.

Limited Outdoor Storage. A use where less than 50% of the lot is used to store equipment and other materials customarily used in the operations associated with the principal use of the property in an unenclosed area.

Outdoor Storage. A use not classified as Limited Outdoor Storage where property is used to store equipment, vehicles, or other materials in an unenclosed area.

Impoundment Yards. An industrial use where a government agency establishes and operates a fenced yard or enclosed area where storage of vehicles seized by, and in the custody of, the government agency, are stored for retrieval by the vehicle owner or are sold by proper means by the agency.

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Salvage Yards. An Industrial use where materials are extracted from unusable equipment, structures, or vehicles and stored for future use or resale.

Junk Yards. An Industrial use where waste or used material are bought, sold, exchanged, stored or processed for disposal.

Pet Crematory. An Industrial use where land and buildings are used for the preparation and processing of deceased domestic animals.

Air Cargo Terminals. An Industrial use where land and buildings are used for the storage of airplanes, airplane cargo or other facilities associated with air transportation or air shipping.

Aircraft Sales, Repair, Service, Storage. An Industrial use where land and buildings are used for keeping inventory related to aircraft sales or for the storage and maintenance of aircraft.

Railroad Yards and Maintenance Buildings. An Industrial use where land and buildings are used for the storage of rail cars, rail cargo or other facilities associated with rail transportation or rail shipping.

- g. **Public Service Uses.** The Public Service use category is for businesses or government entities engaged providing technical and operational services that serve the general public and community interest to enhance general health, safety, welfare and convenience for landowners and residents, and that serve interests beyond the specific site or facility. This category is based on the need of different kinds and classes of buildings in close proximity with other uses, which can be buffered from the adjacent areas they serve with the appropriate site design, or alternatively which can be located in special purpose districts and still serve the public interest.

Commercial or Public Parking Facility. A Public Service use where land and buildings are used for hourly or daily parking of passenger vehicles that serves other uses, sites and buildings in the vicinity. The parking services may be owned by the government or owned and operated as a business.

Government Facility. A facility or area of land controlled and/or operated by a government entity to aid in providing a service to the citizens under the

jurisdiction of that entity.

Military. A Public Service use where land and buildings are used for operations of the United States Armed Forces.

Recycling Services. A Public Service use where land and buildings are used for the public drop-off, storage, and packaging of recyclable materials. Processing may occur on site, or materials may be shipped to other industrial sites for further processing.

Transportation Facilities. A Public Service use engaged in the business of offering transportation services to the public, such as airport terminals, bus stations, train stations, taxi stations, parking garages, bicycle depots or similar facilities for common storage personal vehicles or common boarding of public vehicles.

Utility Stations. A Public Service use where land is used for the concentrated location of fixed equipment necessary to serve adjacent areas with utility service, including other accessory buildings and facilities essential to the operation of the equipment.

- h. **Agriculture Uses.** The Agriculture use category is for uses that are commonly associated with an agrarian or rustic lifestyle, and which demand little or no public infrastructure or services.

General Agriculture. The production of grain, animals, food and fiber; the science and art of farming and ranching; and the work of cultivating the soil, producing crops and raising livestock. General Agriculture specifically excludes concentrated feeding operations where swine are confined, fed and maintained for 45 consecutive days or more in any 12-month period.

Limited Agriculture. The production of grain, animals, food and fiber on a small scale where any impacts on potential adjacent property from storage, operations, and equipment can be internalized into the site or buffered from abutting areas, typically not occurring on lots or parcels larger than 10 acres.

Agricultural Equipment and Supply. An Agriculture use where the land and buildings are used for retail sales of equipment and materials used for agricultural-related

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1.4 INTERPRETATION

land uses, and accessory servicing of agriculture equipment.

Agriculture Product Sales / Farmers Market. An Agriculture use where land and buildings are used for the retail sale of agricultural products and operated without any additional or permanent site facilities than are otherwise associated with agriculture use. Road side stands, truck sales, or barn sales are examples of such uses, however the intensity and frequency of such sales shall be so that no additional parking, roads, structures, warehouses, or other storage facilities are necessary on the site.

Arenas and Show Barns. An Agriculture use where the land and buildings are used for show or sale of livestock, and where the public can attend these and other related activities.

Commercial Stables. An Agriculture use where land and buildings are used for the business of boarding horses, donkeys, mules, burros, llamas or other similar equine animals.

Nurseries, Landscaping. An Agriculture use to grow plants of any kind for transplanting to another location or for sale as live plants rather than as crops, including the sale of related equipment and supplies.

ARTICLE 5

ZONING REGULATIONS

5.1 GENERAL PROVISIONS

UNIFIED DEVELOPMENT CODE

ARTICLE 5 ZONING REGULATIONS

- 5.1 General Provisions
- 5.2 Rural and Agriculture Districts Standards
- 5.3 Residential Neighborhood Districts Standards
- 5.4 Commercial and Mixed-Use Districts Standards
- 5.5 Industrial Districts Standards
- 5.6 Special Purpose and Overlay Districts Standards
- 5.7 Specific Use Standards
- 5.8 Supplemental Provisions

5.1.2 Zoning Districts Established

The following zoning districts are established:

<i>Rural and Agriculture Districts</i>	
AG	Agricultural
AR	Agricultural Residential
RR	Rural Residential
<i>Residential Neighborhood Districts</i>	
LR	Low-density Residential
MR	Medium-density Residential
HR	High-density Residential
NR-1	Neighborhood Residential - Moderate Density
NR-2	Neighborhood Residential – Medium Density
NR-3	Neighborhood Residential – High Density
<i>Commercial and Mixed-Use districts</i>	
NB	Neighborhood Business
CB	Community Business
CBD	Central Business District
MUR	Mixed-Use Residential Emphasis
MUB	Mixed-Use Business Emphasis
MUE	Mixed-Use Employment Emphasis
BP	Business Park
<i>Industrial Districts</i>	
LI	Light Industrial
HI	Heavy Industrial
<i>Special Purpose and Overlay Districts</i>	
P	Public District
PUD	Planned Unit Development
AD	Airport District
SS	Support Services
M	Military
AHR	Airport Height and Use Restrictions
CHR	State Capitol Height Restrictions

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5.1 GENERAL PROVISIONS

RE	<u>Regional Entertainment</u>
RUCAO	<u>Restricted Use Control Area Overlay District</u>
UU	<u>Urban Use Overlay District</u>
<i>Form-based Code Districts*</i>	
T-1	Natural
T-2	Rural
T-3	Suburban
T-4	General Urban
T-5	Urban Center
T-6	Urban Core
D	District
CS	Civic Space

* Form-based code districts are subject to a Regulating Plan, and the procedures and district standards in Article 7. Each district may further be limited with respect to uses by L (limited), R (restricted), and O (open) based on a specific Regulating Plan.

category for a specific use.

Uses are allowed in various zoning districts as either “permitted by right” (P), “permitted after administrative review” (A), or “permitted after conditional discretionary review” (C), or “permitted after special use review” (S) as indicated in Table 5-1. Uses, including those ‘permitted by right’, typically require site plans and building permits to be lawfully established. The procedures and general criteria for these reviews are included in Article 2.

5.1.4 Districts and Uses

Uses have been grouped in general categories, wherever possible. The categories are meant to allow discretion in determining permitted uses. Some uses are more specifically listed because of anticipated impacts associated with the use which warrant special treatment with respect to which district they are allowed in or special review procedures and standards that make the use compatible with certain districts. These cannot be included in the general categories and they require the approval process as indicated. Applicants and staff will need to work closely together in determining the appropriate

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ZONING REGULATIONS

5.1 GENERAL PROVISIONS

TABLE 5-1: ZONING DISTRICT USES

ZONING DISTRICTS ►	AG	AR	RR	LR	MR	HR	NR-1	NR-2	NR-3	NB	CB	CBD	LI	HI	P	MUR	MUB	MUE	BP	AD	SS	PUD	M	AHR	CHR
▼ CATEGORY OF USES / SPECIFIC USES																									
Residential Uses																									
Detached Dwelling	P	P	P	P	P	P	P	P	P			P				P	P				P				
Semi-attached Dwelling ("Duplex")				P	P	P	P	P	P			P				P	P				P				
Attached Dwelling ("Townhouse")					P	P		P	P			P				P	P				P				
Cottage Lots				C	C	C	C	P	P			P				P	P				P				
Group Housing				C	C	C	C	C	C	C	C	C	C	C		C	C	C			P				
Dormitories					C	A						P				P	P				P				
Multi-dwelling Building ("Apartment")					C	P		P/C	P		C					P/C	P	P			P				
Live/Work					C	P		C	A	P	P	P				P	P	P	C		P				
Mixed-use Dwelling										P	P	P				P	P	P	C		P				
Accessory Dwelling	A	A	A	A	A	A	A	A	A			A				A	A				P				
Urban Loft Building									C	P	C	C				C	P				P				
Manufactured housing parks		C		C	C	C															P				
Civic Uses																									
Neighborhood Assembly (<350 maximum occupancy)	C	C	C	C	C	C	A	A	A	A	A	P	C		C	A	A	A	C		P				
Community Assembly (350 - 1000 maximum occupancy)										A	A	P	C		C	A	A	A	C		P				
Cemeteries	A									A	A	P	C		C	A	A	A			P				
Primary and secondary schools	C	C	C	C	C	C	C	C	C	A	A	P			P	A	A	A	C		P				
Educational facilities											P	P			P		A	A	C		P				
Community Athletic Field				C	C	C	C	C	C	A	A				P	A	A	A	P		P				
Developed Athletic Field or Stadium											C		C		C		C	C	P		P				
Service Uses																									
Service Business - Limited										P	P	P				A	P	P	P		P				
Service Business - General										C	P	P				C	C		P		P				
Assisted Living / Nursing Home	C	C	C	C	C	A	C	C	C	C	C				P	P	P	P			P				
Animal Care - Kennel	P	C									P		P						P		P				
Animal Care - Hospital / Clinic	C	C								C	P	C					C				P				
Family Child Care Home (FCCH)	P	P	P	P	P	P	P	P	P	P	P	P				P	P	P			P				
Family Child Care Center (FCCC)	A	A	A	A	A	A	A	A	A	P	P	P				A	P	P			P				
Child Care Center (CCC)	A	C	A	C	C	C	C	C	C	P	P	P				C	P	P	P		P				
Emergency Shelter											P		C												
Entertainment, Indoor Recreation Facility				C	C	C	C	C	C	C	P	P	P		A	C	P	P	P		P				

Planned District—uses subject to a development plan

Federal Property—No City authority over uses

Overlay District—uses subject to base zoning district

Overlay District—uses subject to base zoning district

P = Use permitted by right A = Use permitted after administrative review C = Use permitted after conditional discretionary review
 S = Use permitted after special use review (blank = prohibited use)

ARTICLE 5

ZONING REGULATIONS

5.1 GENERAL PROVISIONS

ZONING DISTRICTS ►	AG	AR	RR	LR	MR	HR	NR-1	NR-2	NR-3	NB	CB	CBD	LI	HI	P	MUR	MUB	MUE	BP	AD	SS	PUD	M	AHR	CHR
▼ CATEGORY OF USES / SPECIFIC USES																									
Services Uses (cont.)																									
Entertainment, Outdoor Recreation Facility	C	C	C	C	C	C	C	C	C	C	C	A	C	C	A	C	C	C	P		P				
Entertainment, Venue (1000+ maximum occupancy)	C	C	C								A	A	C		A		C	C	P		P				
Entertainment, Amusement, Recreation—Other	C	C	C								C	P	C	C	C		C	C	C		P				
Gaming Center											S	S					S								
Lodging, Bed and Breakfast	P	A	A	C	C	C	C	A	P							P	P	P			P				
Lodging, Hotel / Motel											P	P					P	P	P		P				
Campground	C	C											P						C		P				
Recreational Vehicle Park	C	C											P						C		P				
Medical Care, Clinic and Office										P	P	P				C	P	P	P		P				
Medical Care, Hospital															P			P	P		P				
Mini Storage					C	C					P	C	P	P		C	C	P							
Storage, Yard													C	P					C		P				
Employment Uses																					P				
Home occupations	P	P	P	P	P	P	P	P	P	P	P	P	P	P		P	P	P	P		P				
Office – Limited (<3,500)					C	A		C	A	P	P	P	P	P		P	P	P	P		P				
Office – general (3,500 – 20K)						C				C	P	P	P	P		A	P	P	P		P				
Office – Major Office Complex (>20K)											P	P	P	P			P	P	P		P				
Commercial Uses																									
Convenience Retail / Corner Store (<2k)										P	P	P	P			A	P	P	P		P				
Neighborhood Retail (2K - 5K)										P	P	P	P			A	P	P	P		P				
General Retail (5K - 25K)											P	P	P				P	A	P		P				
Large-scale Retail (25K - 100K)											P	P	P				P	C	P		P				
Warehouse Retail (> 100K)											P	P	P				P		P		P				
Grocery Store <45K										P	P	P	P				P	P	P		P				
Supermarket > 45K											P	P	P				P	C	P		P				
Outdoor Sales, Limited										A	P	A				A	A	A	C		P				
Outdoor Sales, Seasonal										C	A	C				C	C	C	C		P				
Outdoor Sales, Event or Display Area										C	A	C				C	C	C	C		P				
Outdoor Sales											C		C	C			C		C		P				
Bars and liquor stores										C	C	P			A		C	C		P	P				
Automobile Service Repair										C	P	C	P	P			C	C	P		P				
Automobile Service Station - Limited										C	P	C	P	P			C	C	P	P	P				

Planned District – uses subject to a development plan

Federal Property – No City authority over uses

Overlay District – uses subject to base zoning district

Overlay District – uses subject to base zoning district

ARTICLE 5

ZONING REGULATIONS

5.1 GENERAL PROVISIONS

ZONING DISTRICTS ►	AG	AR	RR	LR	MR	HR	NR-1	NR-2	NR-3	NB	CB	CBD	LI	HI	P	MUR	MUB	MUE	BP	AD	SS	PUD	M	AHR	CHR
▼ CATEGORY OF USES / SPECIFIC USES																									
Commercial Uses (cont.)																									
Automobile Service Station - General											P	C	P	P				C	P		P				
Automobile Service Station – Large-scale											C		C	P					P		P				
Food Service – Limited (under 2K)										P	P	P				P	P	P	P	P	P				
Food Service – General (2K – 4K)										C	P	P					P	P	P	P	P				
Food Service – Large-scale (over 4k)											P	P					P	P	P		P				
Industrial Uses																									
Data Center										C	C	C	P	P			C	P	P						
Limited Industrial										A	A	P	P	P	P	A	P	P	P		P				
Moderate Industrial												C	P	P			C	P	P		P				
General Industrial													C	P					P		C				
Industrial														C					C		C				
Limited Outdoor Storage													P	P	C			A	P		C				
Outdoor Storage													C	P				C			C				
Impoundment Yards													P	P			C	C			C				
Salvage yards													C	C							C				
Junk yards														C							C				
Air cargo terminals																				P	C				
Aircraft sales, repair, service, storage and relating uses																				P	C				
Railroad yards and maintenance buildings													P	P					P		C				
Oil and Gas Support Services														S											
Public Service Uses																									
Commercial and Public Parking Facility												P			P		P	P	P		P				
Government Facility										P	P	P	P	P	P	P	P	P	P	P	P				
Military																				P	P				
Recycling Services											C		P	P			C	C	C		P				
Transportation facilities											C		P	P	P				P	P	P				
Utility Stations	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	P	A	P				
Agriculture Uses																									
General Agriculture	P																			P	P				
Limited Agriculture	P	P																		P	P				
Agricultural equipment or product sales	C																				P				
Commercial stables, arenas, and show barns	C	C																			P				
Nurseries, landscaping	P	P									C		P	P			C				P				

Planned District – uses subject to a development plan

Federal Property – No City authority over uses

Overlay District – uses subject to base zoning district

Overlay District – uses subject to base zoning district